

PRESSING ON Rahul addresses the media at the Congress HQ, Mar. 25

Photograph by CHANDRADEEP KUMAR

Little could Congress leader Rahul Gandhi have known that the ordinance he tore up so dramatically in September 2013 would come back to bite him 10 years down the line. That ordinance, passed by the Congress-led United Progressive Alliance (UPA) government, had sought to help lawmakers convicted for criminal offences and sentenced to at least two years in prison avoid immediate disqualification from Parliament or state assemblies. At a press conference, Rahul had overturned his own government's legislation in public, calling it "nonsense". Two years later, he moved the Supreme Court seeking a decriminalisation of the act of defamation. He had reason to worry. Till 2014, he had no criminal cases against him, but his election affidavit in 2019 showed six criminal cases against him, mostly related to defamation. His plea was rejected.

Rahul had also, at the 85th plenary of the Congress in Raipur in Chhattisgarh this February, made an emotional pitch saying how he had been homeless since childhood, owning no house except the official bungalows allotted to him and his family.

Fate now seems to have caught up with him in a multitude of ironies. On March 23, a district court in Surat pronounced Rahul guilty of defamation for an election speech he had made in 2019 where he asked, "How come all thieves have the surname Modi?", and proceeded to name fugitive diamantaire Nirav Modi, controversial cricket administrator Lalit Modi and Prime Minister Narendra Modi. Saying that he could have named others such as Vijay Mallya or Mehul Choksi instead of all Modis, the court sentenced him to two years in prison. The complaint was lodged by BJP MLA, ex-Gujarat minister and lawyer Purnesh Modi on the grounds that Rahul's remark was a smear against all those who share the Modi surname.

No sooner was the conviction handed to Rahul, with bail for 30 days to allow him to file an appeal, than the Lok Sabha secretariat issued a notification disqualifying the Wayanad MP from its membership for eight years as per law. A few days later, Rahul was asked to vacate the official bungalow at 12, Tughlaq Lane, allotted to him as MP.

The twin blows have left Rahul hunting not just for a new home but also a concerted strategy to chart out a path for political revival, for himself and his party.

Many in the Congress see it as a blessing in disguise. It gives the party a chance to project Rahul as a martyr, the victim of an "attack by the BJP dispensation", and is likely to enthuse party cadre in the run-up to the 2024 general election. Riding so far on the momentum provided by the Bharat Jodo Yatra and speeches abroad, this can serve as additional ballast for the party's campaign in the six assembly elections set to take place this year. Positive outcomes in these electoral outings are likely to set the tone for the general election next year and a sustained and aggressive campaign is a must for the party to get there.

The first test, of course, will take place in the very state where Rahul made the controversial speech—Karnataka. The Congress hopes to deploy Rahul's victimhood as an effective plank against the ruling BJP, which is reportedly battling anti-incumbency in the state. In a meeting held to strategise on the Congress response to Rahul's disqualification, party general secretary Priyanka Gandhi Vadra talked about how victory in the upcoming Karnataka polls could be the best response to the blow the BJP has inflicted. Even BJP leader Ravi Shankar Prasad acknowledged the chance the episode has handed the Congress when he said that Rahul Gandhi will now try to emerge a "martyr"